

Cal.App.3d 682, 692.

With respect to demurrers, courts are generally quite liberal in allowing amendment. When a demurrer is sustained, the court must determine if “there is a reasonable possibility that the defect can be cured by amendment.” *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318. “Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.

In the instant matter, Defendant admits all of the elements of a breach of contract, the sole cause of action. He admits the existence of damages by offering no denial to Plaintiff’s allegation that he failed to pay an agreed-upon amount, and that they Plaintiff did, in fact, suffer damages. The only matter of dispute raised by Defendant is the amount of damages, not the existence of damages.

The court does not find that there exists a reasonable possibility that the deficient Answer can be cured through amendment.

Disposition

Plaintiff’s Motion is Granted.

This matter will be scheduled for a further hearing for Plaintiff to prove the amount of damages. That hearing will be 9/30/26, 10am.

Plaintiff to file Order and notify Defendant.

8. 9:00 AM CASE NUMBER: L25-02555
CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. PAULINE JETTIE
*HEARING ON MOTION IN RE: MOTION FOR SUMMARY JUDGMENT
FILED BY:
***TENTATIVE RULING**

Background

On 12/22/25, Plaintiff filed a Motion for Summary Judgment (the “MSJ”), along with a Declaration and a Separate Statement of Undisputed Material Facts. The Motion is unopposed.

Plaintiff timely served Defendant via mail service on counsel of record as of 12/22/26. The court notes that a Change of Attorney form was filed on behalf of Defendant on 1/13/26, but that the new attorney is a member of the same law firm, with the same

address, as the previous attorney. Thus, the court finds proper service.

The Declaration purports to be a statement from a custodian of records at American Express. The statement reflects that all the elements of a breach of contract are established. However, while the affiant of the declaration provides a handwritten signature on the declaration, their name is illegible, and no printed name is offered. The identity of the affiant remains a mystery. This is insufficient as evidence.

Disposition

The Motion will be continued to 9/29/26, 9am.

Plaintiff to provide a Declaration with a legible indication of the name of the person to whom the affiant's signature belongs.

Plaintiff to provide notice of the hearing to Defendant.

Plaintiff to file Order reflecting this ruling.

9. 9:00 AM CASE NUMBER: L25-03457

CASE NAME: CAPITAL ONE, N.A. VS. JESSICA IBARRA

***HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION TO ENTER JUDGMENT
PURSUANT TO CCP 6646 FILED BY PLTF. ON 04/07/2026**

FILED BY: CAPITAL ONE, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to enter judgment pursuant to stipulation, along with a Declaration and Memo of Costs. The motion was served by mail to the address of Defendant's counsel.

The Motion is unopposed.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$11,057.28, less any credits for payments received.

The written stipulation was filed with the court.

Defendant defaulted on the payments.

Defendant made total payments in the amount of \$2,147.88.